

Maria-Alejandra O'Shaughnessy

Name

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Check your email. You will receive information and documents at this email address.

In the District Court of Utah

Fifth Judicial District Washington county

Court Address 206 West Tabernacle, St. George, UT 84770

Maria-Alejandra O'Shaughnessy

Petitioner

V.

County of Washington

Respondent

Petition for Relief Under the Post-Conviction Remedies Act

Utah Code Section 78B-9-101 et seq.

Utah Rule of Civil Procedure 65C

Case Number

Judge

Notice to the Petitioner:

Before completing this form, please read it carefully. If you have any questions, contact an attorney. Court clerks are not allowed to give legal advice. Attach additional sheets of paper as necessary to complete your answers. Show the question number from this form on the additional sheet of paper.

I. Name of Respondent (check one)

☐ Conviction of Felony

☒ Conviction of Misdemeanor or Ordinance

☐ Conviction of Misdemeanor or Ordinance

State of Utah

County of: Washington

Municipality of: _____

II. Identification of Current and Related Cases

1. (a) Name of court that entered the judgment being challenged:

Fifth District Court

- (b) Location of court: Washington County, Utah

- (c) Case number: 241500987

2. Date of judgment being challenged: 2024-06-03

3. Sentence:

Recorded sentence: 365 days jail with 300 suspended; 36 months probation and recorded conditions.

4. Nature of offense involved (all counts):

Count 1: qualifying class A misdemeanor; Count 2: qualifying class B misdemeanor.

5. What was your plea? (check one)

☐ Not guilty

☒ Guilty

☐ No contest

☐ Guilty and mentally ill

☐ Not guilty by reason of insanity

6. If you entered a plea of guilty to some counts, and a not guilty plea to other counts, give your plea to each count:

Count 1: guilty. Count 2: no contest.

7. If you plead not guilty or not guilty by reason of insanity, was the trial before a

☐ Jury ☐ Judge

8. Did you testify at the trial?

☐ Yes ☐ No

9. Did you appeal from the conviction or sentence?

☒ Yes ☐ No

10. If your answer is "yes," provide the following information:

(a) Name of Appellate Court: Utah Court of Appeals

(b) Case #: 2024-CA-101

(c) Result:

Affirmed. _____

(d) Date of result or citation of opinion: 2025-01-15

(e) Grounds raised:

Grounds listed in the appellate brief. _____

(f) Did you seek further review of this appeal?

☒ Yes ☐ No

(g) If your answer is "yes," provide the following information:

(1) Name of Reviewing Court: Utah Supreme Court

(2) Case #: 2025-SC-22

(3) Result:

Petition denied. _____

(4) Date of result or citation of opinion: 2025-05-02

(5) Grounds raised:

Grounds listed in the certiorari petition.

11. If you did not appeal from your conviction or sentence, why not?

12. (a) Other than your direct appeal from your conviction or sentence, have you filed any petitions, applications, or motions with respect to this conviction or sentence in any court, state or federal?

☒ Yes ☐ No

(b) If your answer is "yes," provide the following information:

(1) Name of Court Fifth District Court

(2) 251500111

(3) Result:

Dismissed without merits adjudication.

(4) Date of result or citation 2025-07-01

(5) Grounds raised:

Ground listed in the filed petition.

(c) Did you receive an evidentiary hearing on your petition, application or motion?

☐ Yes ☒ No

(d) Did you appeal the decision on your petition, application, or motion?

☒ Yes [] No

(e) If your answer is "yes," provide the following information:

(1) Name of Court: Utah Court of Appeals

(2) Case number: 2025-CA-220

(3) Result:

Dismissal affirmed.

(4) Date of result or citation: 2026-01-08

(5) Grounds raised:

Grounds listed in the appellate brief.

13. (a) Other than the case described in question 12, have you filed any further petitions, applications or motions with respect to this conviction or sentence in any court, state or federal?

[] Yes [☒] No

(b) If your answer is "yes," provide the following information:

(1) Name of Court: _____

(2) Case number: _____

(3) Result:

(4) Date of result or citation of opinion: _____

(5) Grounds raised:

(c) Did you receive an evidentiary hearing on your petition, application or motion?

☐ Yes ☐ No

(d) Did you appeal the decision on your petition, application, or motion?

☐ Yes ☐ No

(e) If your answer is "yes," provide the following information:

(1) Name of Court: _____

(2) Case number: _____

(3) Result:

(4) Date of result or citation of opinion: _____

(5) Grounds raised:

14. (a) Do you have any petition, appeal, or motion now pending in any court, state or federal, relating to the judgment being challenged?

☒ Yes ☐ No

(b) If your answer is "yes," provide the following information:

(1) Name of Court: Fifth District Court

(2) 261500333

(3) Nature of Proceeding:

Recorded motion concerning the challenged sentence.

III. Grounds for Relief

Notice to the Petitioner: You may be barred from presenting additional grounds in a future post-conviction petition if you fail to present any grounds that you could present here but do not.

The following is a list of the most frequently raised grounds for relief in post-conviction proceedings. Each statement preceded by a letter constitutes a separate ground for possible relief. You should raise in this petition any of these grounds that apply **and any other grounds not listed** that you may have available.

Do not merely check the grounds listed. If you believe any of these grounds apply to you, **you must allege facts.** The petition will be returned to you if you merely check a ground and fail to list necessary facts or attach supporting documentation.

- (a) Conviction or sentence obtained by plea of guilty that was unlawfully induced or not made voluntarily with understanding of the nature of the charge and the consequences of the plea.
- (b) Conviction or sentence obtained by use of coerced confession.
- (c) Conviction or sentence obtained by use of evidence gained pursuant to an unconstitutional search and seizure.
- (d) Conviction or sentence obtained by use of evidence obtained pursuant to an unlawful arrest.
- (e) Conviction or sentence obtained by a violation of the privilege against self-incrimination.
- (f) Conviction or sentence obtained by the unconstitutional failure of the prosecution to disclose to the defendant evidence favorable to the defendant.
- (g) Conviction or sentence obtained by a violation of the protection against double jeopardy.
- (h) Conviction or sentence obtained by action of a grand or petit jury that was unconstitutionally selected and impaneled.
- (i) Denial of effective assistance of counsel.
- (j) Conviction or sentence under an unconstitutional statute or constitutionally protected conduct.
- (k) The prosecutor knowingly failed to correct false testimony at trial or at sentencing, and there is a reasonable likelihood the false testimony could have affected the judgment of the fact finder.

15. State concisely every ground on which you claim you are entitled to post-conviction relief. Summarize briefly the facts supporting each ground. If necessary, you may attach additional pages stating additional grounds and facts supporting same.

(a) Ground One: Utah Code 78B-9-104(1)(h)

Supporting facts for Ground One (state briefly without citing law or making argument):

See incorporated Attachment A for the record-derived qualifying offense, trafficking nexus, and supporting evidence. _____

(b) Ground Two: _____

Supporting facts for Ground Two (state briefly without citing law or making argument):

(c) Ground Three: _____

Supporting facts for Ground Three (state briefly without citing law or making argument):

(d) Ground Four: _____

Supporting facts for Ground Four (state briefly without citing law or making argument):

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16. If any of the grounds listed above were not previously presented in any other court, state or federal, state briefly which grounds were not presented and your reasons for not presenting them:

Ground One was not presented in the earlier petition; the record-backed reason is stated in Exhibit 4.

17. Give the name and address, if known, of each attorney who represented you in the following stages of the judgment being challenged:

- (a) Preliminary hearing: R. Counsel, 100 Main St., St. George, UT
- (b) Arraignment and plea: R. Counsel, same address
- (c) Trial: No trial - plea disposition
- (d) Sentencing: R. Counsel, same address
- (e) Appeal: P. Appellate, address in appellate docket
- (f) Post-conviction proceeding: C. PCRA, address in PCRA docket
- (g) Appeal from post-conviction proceeding: A. Review, address in reviewing docket

18. (a) Do you have any future sentence to serve after you complete the sentence imposed by the judgment being challenged?

☒ Yes ☐ No

- (b) If your answer is "yes," give the following information:

- (1) Name of Court: Fourth District Court
- (2) Location: Utah County, Utah
- (3) Case number: 231400456

IV. Required Attachments

Notice to the Petitioner: If you do not attach the required copies or provide an explanation why you cannot provide them, this petition will not be filed and will be

returned to you. You may then lose your right to file a petition if the statute of limitations expires before you file another petition.

19. Attach a copy of the following documents to this petition or provide an explanation why you cannot provide the copies.
- (a) The judgment and commitment being challenged.
 - (b) Any decision issued by an appellate court from the direct appeal.
 - (c) Any previously filed petition for post-conviction relief, and any decision issued as a result.
 - (d) Affidavits, documents, or other evidence that support your claim.
 - (e) A certificate from the Inmate Accounting Office if you are asking the court to waive your filing fee.
 - (f) Memorandum of Points and Authorities.
 - (g) A Declaration of Financial Status (Criminal) if you are asking for a court-appointed lawyer.
20. ☐ I ask the court to appoint a lawyer to represent me in this case. I am filing a Declaration of Financial Status (Criminal) with this petition.

V. Petitioner's Signature

I declare under criminal penalty under the law of Utah that everything stated in this document is true.

Signed at _____ (city, and state or country).

Date

Signature ► _____
Maria-Alejandra O'Shaughnessy

VI. Certification of Attorney (If the petitioner is represented by an attorney)

I certify that I am the attorney for the petitioner, and that this petition complies with Rule 11, Utah Rules of Civil Procedure.

Date

Signature ► _____
Printed Name _____

ATTACHMENT A - GROUND ONE FACTUAL NEXUS AND EVIDENCE SCHEDULE

Incorporated into Question 15(a) of the Petition for Relief Under the Post-Conviction Remedies Act.

1. Qualifying offense

Counts 1 and 2 convictions (Utah Code 76-10-1302). Original case: 241500987.

2. Record-derived trafficking / force / fraud / coercion nexus

1. [FORCE] A filed declaration describes force tied to the conduct underlying both counts. Source: filed declaration, paragraphs 8-12.
2. [FRAUD] The investigative report records fraudulent recruitment tied to the same conduct. Source: investigative report, pages 6-9.

3. Supporting evidence to attach

Exhibit 1: Certified judgment and commitment. Supports: the qualifying convictions and sentence. Record source: district-court file.

Exhibit 3: Filed declaration. Supports: force nexus. Record source: prior proceeding file.

Exhibit 4: Investigative report excerpt. Supports: fraud nexus and prior-presentation explanation. Record source: district-court file.

This schedule transcribes collected record facts and exhibit descriptions. It does not create or infer petitioner testimony. Attach the identified exhibits themselves.

ATTACHMENT B - MEMORANDUM OF POINTS AND AUTHORITIES

Ground

The petition invokes Utah Code 78B-9-104(1)(h) through Utah Rule of Civil Procedure 65C in the district court of conviction.

Proof treatment

The petitioner must establish the qualifying offense and its trafficking, force, fraud, or coercion nexus by clear and convincing evidence. Attachment A identifies the collected record facts and the evidence offered for that showing.

Requested relief

Vacate the conviction and sentence and apply the resulting statutory expungement consequence identified by the controlling implementation decision.

Rule 65C attachment references

- Judgment and commitment: Exhibit 1
- Direct-appeal decision: Exhibit 5
- Prior PCRA filings/decisions: Exhibits 6-9
- Supporting evidence: Exhibit 1, Exhibit 3, Exhibit 4
- Memorandum: this Attachment B (Attachment B)